

25STCV06677 25STCV06677

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Case Number: 25STCV06677 Hearing Date: August 4, 2026 Dept: 415

TENTATIVE

RULING

DEPARTMENT

415

HEARING DATE

August

4, 2026

CASE NUMBER

25STCV06677

MOTION

Motion

to Quash Service of Summons and Complaint

MOVING PARTY

Defendant

Christopher Watts

OPPOSING PARTIES

Plaintiffs

Judd Dunning and Angela Dunning

MOTION

Defendant

Christopher Watts ("Defendant") moves to quash service of the summons and complaint. Plaintiffs Judd Dunning and Angela Dunning ("Plaintiffs") oppose the motion.

ANALYSIS

"In the absence of a voluntary submission to the authority of the court, compliance with the statutes governing service of process is essential to establish that court's personal jurisdiction over a defendant." (Dill v. Berquist Construction Co. (1994) 24 Cal.App.4th 1426, 1439.) A plaintiff may personally serve a defendant by delivering copies of the summons and complaint to the defendant personally. (Code Civ. Proc., § 415.10.)

In the instant case, Plaintiffs filed a proof of service which reflects personal service on Defendant at 5025 Lincoln Avenue in Los Angeles on April 15, 2025 at 3:45 p.m. The proof of service states Ryan Bodmer ("Bodmer") personally served Defendant. (See Proof of Service of Summons, filed April 25, 2025.)

Defendant has submitted his own declaration in which he states an Asian woman and a Caucasian woman served him with an envelope containing the summons and complaint, not Bodmer. (Declaration of Christopher Watts, ¶¶ 22-35.) Defendant also advances the declaration of his friend, Jerymarie Delmundo, who states he was present at the time of service, and he corroborates Defendant's account of the service of summons. (Declaration of Jerymarie Delmundo, ¶¶ 7-14.) Defendant's evidence is sufficient to call into question Plaintiffs' contention they had Defendant served in the manner reflected in the proof of service Plaintiffs filed.^[1] Accordingly, Plaintiffs bear the burden to prove they properly served Defendant. (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

In opposition, Plaintiffs advance the declaration of Bodmer who states he arranged for his wife to serve Defendant on April 15, 2025. (Declaration of Ryan Bodmer, ¶¶ 11-15.) As such, Bodmer's declaration confirms the proof of service Plaintiffs filed does not accurately reflect the service of summons and complaint on Defendant. If Bodmer's wife, not Bodmer, served the summons and complaint, she should have executed the proof of service. As the proof of service of summons Plaintiffs filed is inaccurate, the motion to quash service of summons and complaint is granted.

CONCLUSION AND ORDER

Defendant's motion to quash Plaintiffs' service of summons is granted.

Defendant is ordered to provide notice of the Court's ruling and to file proof of service of same.

[1]The Court notes, Bodmer does not represent he is a registered California process server. Thus, Plaintiffs cannot benefit from the presumption of service which would attach under Evidence Code section 647 regarding service by a certified process server. (See Evid Code, § 647 [declaration of service by a registered process server establishes presumption facts stated in declaration are true].)